

Rajpal Ahirwar vs The State Of Madhya Pradesh on 22 December, 2022

Author: Anand Pathak

Bench: Anand Pathak

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THE HIGH COURT OF MADHYA PRADESH
Criminal Appeal No.8590/2022/2022
(Rajkpal Ahirwar Vs. State of M.P.)

Gwalior, dated : 22.12.2022

Shri Ashok Dohre, learned counsel for the appellant.
Shri R.K. Awasthi, learned Public Prosecutor
respondent/State.

Heard on I.A. No.19900/2022, an application under Section 389 (1) of Cr.P.C. for suspension of sentence filed in respect of appellant.

The appellant has been convicted and sentenced as under:-

Section	Conviction	
354 of the IPC	3 years RI	Rs.5
readwith 7/8 of		
the POCSO Act		

Learned counsel for the appellant submitted that trial court erred in convicting the appellant and awarding jail sentence without appreciating the evidence and materials available on record. Appellant has good case on merits. Hearing of this appeal shall take considerably long time. Fine amount has already been deposited. Appellant shall not be a source of embarrassment or harassment to the complainant party in any manner. Appellant intends to perform some community service to purge himself out of the guilt felt by the applicant and to serve national/environmental/social cause. Under these circumstances, he prayed for suspension of sentence and grant of bail.

Learned Public Prosecutor for the State opposed the prayer and prayed for its dismissal.

Heard the learned counsel for the parties and record perused. Considering the overall facts and circumstance of the case, without commenting on the merits of the case as there is no possibility of early hearing of this criminal appeal before this Court and as per the spirit of THE HIGH COURT OF MADHYA PRADESH Criminal Appeal No.8590/2022/2022 (Rajkpal Ahirwar Vs. State of M.P.) community service echoed in the order of Sunita Gandharva Vs. State of M.P. reported in 2020(3) MPLJ(Cri.)247, hence, I.A. No.19900/2022 is allowed subject to deposit of fine amount and it is

ordered that on furnishing a personal bond of Rs.50,000/- (Rupees Fifty Thousand Only) with one solvent surety of the like amount to the satisfaction of the concerned trial Court, appellant's jail sentence shall remain suspended till disposal of this appeal and he be released on bail. The appellant is further directed to remain present before the Registry of this Court on 06.02.2023 and, thereafter, on such subsequent dates as may be fixed by the Registry.

,rn~ }kjk ;g Hkh funZsf'kr fd;k tkrk gS fd vkosnd 05 ikS/kksa dk Qy nsus okys isM+ vFkok uhe@ihiy^{1/2} jksi.k djsxk rFkk mUgs vius vkl iMksl esa isM+ksa dh lqj{kk ds fy, ckM+ yxkus dh O;oLFkk djuh gksxh rkfd ikS/ks lqj{kr jg ldsA vkosnd dk ;g drZO; gS fd u dsoy ikS/kksa dks yxk;k tk,s] cfYd mUgsa iks"n.k Hkh fn;k tk,A ^ ^ o` {kkjksi.k ds lkFk] o` {kkiks"n.k Hkh vko';d gSA ^ ^ vkosnd fo'ks"kr% 6&8 QhV Åwaps ikS/ks@isM+k sa dks yxk;sxs rkfd os 'kh?kz gh iw.kZ fodflr gks ldsA A vuqikyu lqfuf'pr djus ds fy,] vkosnd dks fjk fd;s tkus dh fnukad ls 30 fnuksa ds Hkhrj fopkj.k U;k;ky; ds le{k o` {kksas@ikS/kksa ds jksi.k ds lHkh QksVks çLrqr djus gksxsaA rRi'pkr~] vxys rhu o"kZ rd gj rhu eghus esa vkosnd ds }kjk fopkj.k U;k;ky; ds le{k izxfr fjiksVZ çLrqr dh tk,xhA o` {kksa dh çxfr ij fuxjkuh j[kuk vkosnd dk drZO; gS D;ksafd i;kZoj.k {kjk ds dkj.k ekuo vflRro nkao ij gS vkSj U;k;ky; vuqikyu ds ckjs esa vkosnd }kjk fn[kkbZ xbZ fdllh Hkh ykijokgh dks utj vankt ugh dj ldrk gSA blfy, vkosnd dks isM+ksa dh çxfr vkSj vkosnd }kjk vuqikyu ds laca/k esa ,d fjiksVZ çLrqr djus ds fy, funZsf'kr fd;k tkrk gS ,oa vkosnd }kjk fd;s x;s vuqikyu dh ,d la{kfIr fjiksVZ fopkj.k U;k;ky; ds le{k izR;sd rhu ekg esa izLrqr dh tk;sxhA o` {kkjksi.k esa ;k isM+ksa dh ns[kHkky esa vkosnd dh vksj ls dh xbZ dksbZ Hkh pwd vkosnd dks tekur dk ykHk ysus ls oafpr dj ldrh gSA vkosnd dks viuh ilan ds LFkku ij bu ikS/kksa@isMksa dks jksius dh Lora=rk gksxh] ;fn og bu jksis x;s isMksa dh V^{ah} xkMZ ;k ckM+ yxkdj j{kk djuk pkgrk gS] vU;Fkk vkosnd dks THE HIGH COURT OF MADHYA PRADESH Criminal Appeal No.8590/2022/2022 (Rajkpal Ahirwar Vs. State of M.P.) o` {kksa ds jksi.k ds fy, rFkk muds lqj{kk mik;ksa ds fy, vko';d [kpsZ ogu djuk gksxsaA bl U;k;ky; }kjk ;g funsZ'k ,d ijh{k.k izdj.k ds rkSj ij fn, x, gSa rkfd fgalk vkSj cqjkbZ ds fopkj dk izfrdkj] l`tu ,oa izd`fr ds lkFk ,dkdkj gksus ds ek;/e ls lkeaktL; Lfkkfir fd;k tk ldsA orZeku esa ekuo vflRro ds vko';d vax ds :i esa n;k] lsok] izse ,oa d:a.kk dh izd`fr dks fodflr djus dh vko';drk gS D;ksafd ;g ekuo thou dh ewyHkwr izo`fr;ka gSa vkSj ekuo vflRro dks cuk, j[kus ds fy, budk iquthZfor gksuk vko';d gSA ;g funsZ'k vkosnd ds }kjk Lor% O;Dr dh xbZ lkeqnkf;d lsok dh bPNk ds dkj.k fn;k x;k gS tks LoSfPNd gSA ^ ^ ;g iz;kl dsoy ,d o` {k ds jksi.k dk iz'u u gksdj cfYd ,d fopkj ds vadqj.k dk gSA ^ ^ It is expected from the applicant that he shall submit photographs by downloading the mobile application (NISARG App) prepared at the instance of High Court for monitoring the plantation though satellite/Geo-tagging/Geo-fencing.

It is made clear that this bail is granted once the case is made out for bail and thereafter, direction for plantation of saplings is given and it is not the case where a person intends to serve social cause can be given bail without considering the merits.

I.A. No.19900/2022 stands allowed and disposed of. Copy of this order be sent to the trial Court concerned for compliance.

Certified copy as per rules.

(Anand Pathak) Vacation Judge ahd